

constitutional rights...into line with incentives they have to undertake claims for which they are paid on a fee-for-services basis.” (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1132.) The party seeking the enhancement has the burden of proof. (*Id.* at 1138.) “[A] trial court should award a multiplier for exceptional representation only when the quality of representation far exceeds the quality of representation that would have been provided by an attorney of comparable skill and experience billing at the hourly rate used in the lodestar calculation. Otherwise, the fee award will result in unfair double counting and be unreasonable.” (*Id.* at 1138.) This was not a complicated case and required no trial preparation, with limited law and motion presented. Accordingly, the court declines to apply a multiplier.

Costs

Civil Code §1794(d) permits the court to award reasonably incurred costs and expenses. The Legislature intended the use of “costs and expenses” to include items excluded under CCP §1033.5. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 137-138; accord *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 42-43.) Plaintiffs filed a memorandum of costs on 7/15/26. Defendant does not challenge Plaintiffs’ \$3,649.56 in costs and expenses. These costs appear to be reasonably incurred. The court awards that amount.

The court grants in part, denies in part, the motion and awards a lesser amount of \$17,410 in fees and awards the full amount of \$3,649.56 in costs. Moving party is ordered to submit a proposed order consistent with this ruling by no later than August 20, 2026.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2502951	JAFFE vs NUEVO ROAD ANIMAL HOSPITAL VETERINARY CORPORATION	DEMURRER ON 2ND AMENDED COMPLAINT

Tentative Ruling:

The court notes that Plaintiff filed the SAC at issue in this ruling on May 26, 2026, after the court granted Defendants’ motion for judgment on the pleadings, with ten (10) days leave to amend.

To withstand a demurrer the complaint must contain “a statement of the facts constituting the cause of action, in ordinary and concise language.” (C.C.P. § 425.10.) On demurrer the court must assume the truth of all facts properly pled, facts that may be implied or reasonably inferred from the facts expressly alleged, and evidentiary facts that are in exhibits attached to the complaint. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.)

2nd Cause of Action for Negligent Misrepresentation

The elements of negligent misrepresentation are: 1) misrepresentation of a past or existing material fact, 2) without reasonable grounds for believing it to be true, 3) with intent to induce another's reliance on the fact misrepresented, 4) justifiable reliance on the misrepresentation, and 5) resulting damage. (*Apollo Capital Fund, LLC v. Roth Capital Partners, LLC* (2007) 158 Cal.App.4th 226, 243.) Negligent misrepresentation is a form of deceit. (*Bily v. Arthur Young & Co.* (1992) 3 Cal.4th 370, 407.) "Negligent misrepresentation is born of the union of negligence and fraud. If negligence is the mother and misrepresentation the father, it more closely resembles its mother." (*Ventura County Nat'l Bank v. Macker* (1996) 49 Cal.App.4th 1528, 1531.) Negligent misrepresentation is essentially a lesser included offense of intentional fraud, which pleading requirements have been applied to the tort of negligent misrepresentation. (See *Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) Fraud must be pled with specificity; the plaintiffs must allege facts which "show how, when, where, to whom, and by what means the representations were tendered." (*Stansfield v. Starkey* (1990) 220 Cal. App. 3d 59, 73, quoting *Hills Trans. Co. v. Southwest* (1968) 266 Cal. App. 2d 702, 707.)

The SAC alleges that as a fee was paid for a "doctor's visit" that it was represented that his cat would be examined by a veterinarian, but that no veterinarian ever came to speak to him and no one provided the identity of a substitute veterinarian covering for Dr. Ahmed. That is insufficient to state a cause of action for negligent misrepresentation. **Accordingly, the court sustains the demurrer, without leave to amend, as to the 2nd cause of action.**

3rd Cause of Action for Intentional Misrepresentation/Concealment/Deceit

The elements of fraud, which give rise to a tort action for deceit, are (1) misrepresentation; (2) knowledge of falsity; (3) intent to defraud, i.e., to induce reliance; (4) justifiable reliance; and (5) resulting damage, and each element must be alleged with particularity. (Civ. Code §1709; *Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039.) In a promissory fraud action, to sufficiently allege defendant made a misrepresentation, the complaint must allege (1) the defendant made a representation of intent to perform some future action, i.e., the defendant made a promise, and (2) the defendant did not really have that intent at the time that the promise was made, i.e., the promise was false. (*Beckwith v. Dahl* (2012) 205 Cal.App.4th 1039.)

Like the 2nd cause of action, the SAC alleges that as a fee was paid for a "doctor's visit" that it was represented that his cat would be examined by a veterinarian, but that no veterinarian ever came to speak to him and no one provided the identity of a substitute veterinarian covering for Dr. Ahmed. That is insufficient to state a cause of action for intentional misrepresentation or deceit.

"[T]he elements of a cause of action for fraud based on concealment are: "(1) the defendant must have concealed or suppressed a material fact, (2) the defendant must have been under a duty to disclose the fact to the plaintiff, (3) the defendant must have intentionally concealed or suppressed the fact with the intent to defraud the plaintiff, (4) the plaintiff must have been unaware of the fact and would not have acted as he did if he had known of the concealed or suppressed fact, and (5) as a result of the concealment or suppression of the fact, the plaintiff must have sustained damage. [Citation.]" [Citation.]" [Citation.]" (*Kaldenbach v. Mutual of Omaha Life Ins. Co.* (2009) 178 Cal.App.4th 830, 850.) Further, as this is a fraud cause of action, it must be pled with specificity and general and conclusory allegations do not suffice. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) "The effect of this rule is twofold: (a) General pleading of the legal conclusion of fraud is insufficient; the facts constituting the fraud must be alleged. (b) Every element of the cause of action for fraud must be alleged in the proper manner (i.e. factually and specifically), and the policy of liberal construction of pleadings will not ordinarily be invoked to sustain a pleading defective in any material respect." (*Quelimane Co. v. Stewart Title Guaranty Co.* (1998) 19 Cal. 4th 26, 47.) "This particularity requirement necessitates pleading facts which show how, when, where, to whom, and by what means the representations were tendered." (*Lazar v. Superior Court* (1996) 12 Cal. 4th 631, 645.)

The elements of a fraud cause of action for damages based upon mere nondisclosure involving no fiduciary or confidential relationship are: "(1) Nondisclosure by the defendant of facts materially affecting the value or desirability of the property; (2) Defendant's knowledge of such facts and of their being unknown to or beyond the reach of the plaintiff; (3) Defendant's intention to induce action by the plaintiff; (4) Inducement of the plaintiff to act by reason of the nondisclosure and (5) Resulting damages. [Citations.]" (*Lingsch v. Savage* (1963) 213 Cal.App.2d 729, 738.) Further, as this is a fraud cause of action, it must be pled with specificity and general and conclusory allegations do not suffice. (*Small v. Fritz Companies, Inc.* (2003) 30 Cal.4th 167, 184.) General rule for liability for nondisclosure is that even if material facts are known to one party and not the other, failure to disclose those facts is not actionable fraud unless there is some fiduciary or confidential relationship giving rise to duty to disclose; however, active concealment of facts and mere nondisclosure of facts may under certain circumstances be actionable without such relationship, where the defendant alone has knowledge of material facts not accessible to plaintiff. (*Kovich v. Paseo Del Mar Homeowners' Assn.* (1996) 41 Cal.App.4th 863, 866.)

The SAC fails to state facts to support a fraudulent concealment action. **Accordingly, the court sustains the demurrer, without leave to amend, as to the 3rd cause of action.**

4th Cause of Action for Money Had and Received

"In California, it has long been settled the allegation of claims using common counts is good against special or general demurrers. (*Pike v. Zadig* (1915) 171 Cal. 273, 276, 152 P. 923.) The only essential allegations of a common count are '(1) the statement of

indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.’ [Citation.] A cause of action for money had and received is stated if it is alleged the defendant ‘is indebted to the plaintiff in a certain sum ‘for money had and received by the defendant for the use of the plaintiff.’ [Citation.]” (*Farmers Ins. Exchange v. Zerin* (1997) 53 Cal.App.4th 445, 460.) The SAC fails to state facts to support a cause of action for money had and received. **Accordingly, the court sustains the demurrer, without leave to amend, as to the 4th cause of action.**

1st Cause of Action for UCL Violations

In order to state a claim for a violation of the UCL, Plaintiff must allege that Defendant committed a business act or practice that is fraudulent, unlawful, or unfair. (*Buller v. Sutter Health* (2008) 160 Cal.App.4th 981, 986.) A cause of action for violating this statute “borrows” actionable conduct and makes it independently actionable under the unfair competition law. (*Smith v. State Farm* (2001) 93 Cal.App.4th 700, 718.) **As Plaintiff has not stated a proper claim based on actionable conduct, the court sustains the demurrer, without leave to amend, as to the 1st cause of action.**

The demurrer is sustained, without leave to amend, as to all four causes of action in the SAC.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2502951	JAFFE vs NUEVO ROAD ANIMAL HOSPITAL VETERINARY CORPORATION	MOTION TO STRIKE 2ND AMENDED COMPLAINT

Tentative Ruling:

The motion is denied as moot in light of the ruling on the demurrer.

5.

CASE #	CASE NAME	HEARING NAME
CVRI2601669	LEWIS vs ECOLOGY AUTO PARTS, INC.	DEMURRER ON 1ST AMENDED COMPLAINT

Tentative Ruling:

The hearing is continued to September 16, 2026, at 8:30 a.m. to consider the opposition. A reply may be filed by no later than September 9, 2026. No further briefing is permitted.